

The Rajasthan Civil Services (Special Selection and Special Conditions of Service of Vikas Adhikaris) Rules, 1982

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The Rajasthan Civil Services (Special Selection and Special Conditions of Service of Vikas Adhikaris) Rules, 1982

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The Rajasthan Civil Services (Special Selection and Special Conditions of Service of Vikas Adhikaris) Rules, 1982

Rule

THE-RAJASTHAN-CIVIL-SERVICES-SPECIAL-SELECTION-AND-SPECIAL-CONDITIONS-OF-SERVICE-OF-VIKAS-A
DHIKARIS-RULES-1982 of 1982

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The Rajasthan Civil Services (Special Selection and Special Conditions of Service of Vikas Adhikaris) Rules, 1982

Published vide Notification No. F. 5 (5) DOP/A-2/82 dated 19-10-1982, published in R.G.Extraordinary Part 4-C (1) dated 19-10-1982 Page 233

G.S.R. 77. - In exercise of the powers conferred by the proviso to Art. 309 of the Constitution of India, the Governor of Rajasthan hereby makes the following rules laying down the procedure for Special Selection and Conditions of Service of Officers for appointment as Vikas Adhikaris on deputation to the various Panchayat Samitis in Rajasthan.

1.

Short title and commencement.

(1)

These rules may be called the Rajasthan Civil Services (Special Selection and Special Conditions of Service of Vikas Adhikaris) Rules, 1982.

(2)

They shall come into force on the date of publication in Rajasthan Rajpatra.

2.

Scope and Application.

- These rules shall apply to the appointment of Vikas Adhikaris in the various Panchayat Samitis constituted by the Government of Rajasthan.

3.

Definitions.

- In these rules, unless the context otherwise requires :-

(a)

"Appointing Authority" mean the Government of Rajasthan;

(b)

"Committee" means Committee referred to in rule 9;

(c)

"Government" and "State" means respectively the Government of Rajasthan and the State of Rajasthan;

(d)

"Schedule" means the Schedule appended to these rules;

(e)

"Year" means the financial year ending on 31st March.

4.

Interpretation.

- Unless the context otherwise requires the Rajasthan General Clauses Act, 1955 (Rajasthan Act VIII of 1955) shall apply for the interpretation of these rules as it applies for the interpretation of a Rajasthan Act.

5.

Composition, Nature and Strength of Posts.

(1)

There shall be only one category of post to be held on tenure basis, as specified in the Schedule I viz. Vikas Adhikaris. The Officers selected as Vikas Adhikaris under these rules shall be liable to be posted in any Panchayat Samitis in Rajasthan and the posts shall be transferable.

(2)

The strength of posts of Vikas Adhikaris shall be such as has already been or as may hereinafter be sanctioned by the Government;

(3)

The Government may leave unfilled or hold in abeyance or abolish any post, without thereby entitling any person to any compensation.

Provided that the strength of the officers of the All India Service and Rajasthan Administrative Service vis-a-vis Officers of other services mentioned in schedule I shall be in the ratio of 50:50.

6.

Tenure.

(1)

Posts of Vikas Adhikaris shall be held by officers for a tenure ordinarily not exceeding three years which may be extended by the Government by a further term not exceeding three years:

Provided that the Government may withdraw any officer selected and posted as Vikas Adhikaris under these rules at any time before the completion of the tenure without assigning any reasons and revert him to his parent Department.

(2)

Subject to the provisions of sub-rule (1) above, all appointments shall be, in the first instance, on deputation from the parent department for a period of one year which shall be further extended by such period as may be indicated by the

Appointing Authority, from time to time, and officers concerned shall have lien on their respective parent cadres and on reversion from such deputation they shall not have any right to protection of pay or scale or status held by them as Vikas Adhikaris unless otherwise provided in these rules.

7.

Source of Selection.

- Selection for appointment to the posts of Vikas Adhikaris after the commencement of these rules shall be made on the recommendations of the Committee from amongst the officers mentioned in Column 4 of Schedule I, who hold a lien on a post under the Government:

Provided that notwithstanding anything contained in these rules, any person, who has been holding continuously the post of Vikas Adhikaris for a period of one year on 1-4-82, may be screened by the Committee referred to in rule 9 for adjudging his suitability for the post held by him if he possesses the eligibility prescribed in Schedule I.

8.

Eligibility for Selection.

- Selection of persons for appointing as Vikas Adhikaris shall be made from amongst the holders of the posts mentioned in Column 4 of Schedule I, who fulfill the minimum conditions of the eligibility mentioned in Columns 5 and 6 as on 1st April of the year in which selections are made and are holding a post after regular recruitment in the scale of pay specified in Column 4 of Schedule I or scale which may be declared equivalent thereto by the Government.

9.

Selection Committee.

- Selection to the post of Vikas Adhikaris shall be made by a Committee consisting of the following :-

1.

Development Commissioner

Chairman.

2.

Secretary to Government, Special Schemes Organisation.

Member

3. [

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

Director, Rural Development and Panchayati Raj.

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

Member.

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

4.

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

Secretary to Government Department of Personnel

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

Member.]

[Substituted vide Notification No. F. 5 (5) DOP/A-II/82 dated 29th January, 1993.]

5.

One Secretary or Special Secretary to the Government nominated

by the Chief Secretary

Member.

6.

Deputy Secretary-cum-Deputy Development Commissioner.

Member-Secretary.

Provided that in case no appointment has been made to the post of Development Commissioner/Secretary/Special Secretary/Deputy Secretary, as the case may be, constituting the Committee, the officer holding charge of the post for the time being shall be the Chairman or Member or Member-Secretary, as the case may be, of the Committee:

Provided further that the minimum quorum required for holding the meeting of the Selection Committee would be 4 members, including Chairman:

Provided further also that in case the Development Commissioner is unable to attend the meeting the Senior Most

Secretary present shall preside over such meeting.

10.

Criteria for Selection.

- Selection shall be made by the Committee by interviewing the eligible officers having regard to,-

(a)

educational and technical qualifications and practical knowledge,

(b)

personality and character,

(c)

tact, intelligence and energy,

(d)

integrity,

(e)

previous record of service, and

(f)

past field experience:

Provided that the Committee may select officer after considering the Confidential Dossier and service record without interviewing the candidates.

11.

Determination of Vacancies.

- The Appointing Authority may determine in any year the number of vacancies anticipated to be filled in during the next 12 months or as and when such contingency arises.

12.

Procedure for Selection.

(1)

As soon as it is decided that selection is to be made to fill a certain number of vacant posts of Vikas Adhikaris from amongst the officers mentioned in Column 4 of Schedule I, the Deputy Secretary-cum-Deputy Development Commissioner, Department of Rural Development and Panchayati Raj shall send a circular to all the Departments concerned with such instructions as he deems fit, inviting applications from all the eligible officers and shall call upon the respective Head of Departments of Services mentioned in Column 3 of Schedule I, to forward the applications of all eligible persons received by them upto the specified date through the Secretary to the Government of the Administrative Department concerned alongwith their recommendations and Annual Performance Appraisals.

(2)

On receipt of the recommendations under sub-rule (1) above, the Development Commissioner shall examine the cases of persons recommended for selection as Vikas Adhikaris and shall place the names of all persons who are eligible and fulfill the conditions specified in rule 8 before the Committee referred to in rule 9.

(3)

The Committee shall consider the proposal of the Development Commissioner made in sub-rule (2) and interview such of them as it deem necessary and shall select a number of candidates equal to the number of vacancies likely to be filled in the order of merit.

Provided that the Committee may, if suitable persons are available, keep on reserve list more candidates whose number shall not exceed 50% of the vacancies determined. The names of such candidates may be recommended if such vacancies actually occur within 12 months from the date of selection.

13.

Appointment.

- Appointment to the post of Vikas Adhikaris shall be made from amongst the persons included in the list prepared under sub-rule (3) of rule 12 by the Government in the order of merit.

14.

Notwithstanding anything contained in these rules, an All India Service Officer or Officer of the Rajasthan Administrative Service may be appointed by the Government as Vikas Adhikaris:

Provided that the tenure of appointment of these officers shall not exceed the term specified in rule 6.

15.

The scale of pay and initial pay admissible to Vikas Adhikaris other than Officer of All India Service and Rajasthan Administrative Service, and other conditions relating to increase in pay on promotion in the parent cadre and retirement benefits shall be as laid down in Schedule II.

16.

Except as provided in these rules, other service conditions of the Vikas Adhikaris appointed under these rules shall be regulated by the rules applicable to the officers of the State Government made by the appropriate authority under the proviso to Article 309 of the Constitution of India, and for the time being in force.

17.

Removal of Doubts.

- If any doubt arises relating to the application, interpretation and scope of these rules, it shall be referred to the Government in the Department of Personnel (A-II) whose decision thereon shall be final.

18.

Repeal and Savings.

- All rules and orders in relation to matters covered by these rules and in force immediately before the commencement of these rules are hereby repealed:

Provided that any order made or action taken under the rules and orders so repealed shall be deemed to have been taken under the provisions of these rules.

I

S. No.

Name of Post

Name of service or post, members of which are eligible with name of specific group wing or section

Designation and scale of pay of the post in service wise mentioned in Column No. 3.

Condition of minimum pay if any, of officers mentioned in Column No. 3.

Minimum experience.

1

2

3

4

5

6

1.

Vikas Adhikari

Rajasthan Agriculture Service Officers of Group-C, Extension Service.

Subject Matter Specialist (750-1350)

Drawing Pay Rs. 750/- or above

3 years

2.

Vikas Adhikari

Rajasthan Animal Husbandry

1. Veterinary Surgeon (750-1350)

Rs. 750/-

3 years.

2. Veterinary Assistant Surgeon (650-1270)

Rs. 740/-

3 years.

3.

Vikas Adhikari

Rajasthan Sheep & Wool Service

1. Deputy District Sheep & Wool Officer (750-1350)

Rs. 750/-

3 years.

2. Sheep & Wool Extension Officer(620-1100)

Rs. 680/-

3 years.

4.

Vikas Adhikari

Rajasthan Industries Service

1. District Industries Officer (590-1035).

Rs. 650/-

3 years.

2. Assistant Director (650-1270).

Rs. 740/-

3 years.

5.

Vikas Adhikari

Rajasthan Education Service

1. Senior Deputy District Education Officer (750-1350)

Rs. 750/-

3 years.

2. Headmaster, Higher Secondary School (750-1350)

Rs. 750/-

3 years.

3. Deputy District Education Officer(650-1270)

Rs. 740/-

3 years

4. Education Extension Officer(620-1100)

Rs. 680/-

3 years

5. Assistant Headmaster (650-1270)

Rs. 740/-

3 years

6.

Vikas Adhikari

Rajasthan Co-operative Service

1. Assistant Registrar (650-1270)

Rs. 740/-

3 years

2. Extension Officer (590-1035)

Rs. 650/-

3 years

7.

Vikas Adhikari

Rajasthan Public Works Department Service

1. Assistant Engineer (750-1350)

Rs. 750/-

3 years

8.

Vikas Adhikari

Rajasthan Irrigation Service.

1. Assistant Engineer (750-1350)

Rs. 750/-

3 years

9.

Vikas Adhikari

Rajasthan Public Health Engineering Service

1. Assistant Engineer (750-1350)

Rs. 750/-

3 years

10.

-do-

Rajasthan Tehsildar Service

1. Tehsildar (620-1100)

Rs. 680/-

3 years

11.

Vikas Adhikari

Rajasthan Social Welfare Service

1. Assistant Director (750-1350)

Rs. 750/-

3 years

2. District Probation & Social Welfare Officer (590-1035)

Rs. 650/-

3 years

12.

Vikas Adhikari

Rajasthan Economics and Statistical Service

1. Assistant Director (750-1350)

Rs. 750/-

3 years

Rajasthan Evaluation Service

2. Statistical Officer (650-1270)

Rs. 740/-

3 years

II

(See Rule 15)

Pay, Promotion and Other Condition of the Service.

(i)

Scale of pay. - On appointment the posts of Vikas Adhikaris, the pay of Officers drawing pay in scale lower than Rs. 750-1350, shall be fixed in the scale of Rs. 750-1350, in accordance with rule 26 (A) of the Rajasthan Service Rules, 1951 in relaxation of provision of the said rules. In the case of officer drawing pay in the scale of 750-1350, the pay shall be fixed at the stage equal to the pay drawn by him on the existing post (in substantive or officiating capacity) by increasing it by Rs. 100/- and in case there is no such equal stage then on the next higher stage.

(ii)

Promotion in the Parent Cadre. - A person appointed as a Vikas Adhikari under these rules shall be entitled to proforma promotions in his parent cadre and his pay on the higher post of his parent cadre shall be fixed in accordance with the provisions contained in rule 26 (A) of Rajasthan Service Rules. The period of service rendered as Vikas Adhikari shall count for the purpose of increment in the pay scale applicable to his post in the parent cadre from time to time.

(iii)

Pension, Provident Fund etc. - If the person concerned retires while holding the post of Vikas Adhikari, his emoluments for the purpose of calculating pensions, gratuity under rule 250 (C) of the Rajasthan Service Rules, 1951, shall be taken at what he would have been entitled to, had he not been appointed as Vikas Adhikari.

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